THE SHERIFF OF ZIMBABWE
versus
RAWPLAST INVESTMENTS (PVT) LTD
and
FIRST CAPITAL BANK LIMITED

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 28 October 2025, 20 November 2025 and 2 February 2026.

Interpleader Proceedings

E Jojo for the Applicant.
M T Mapanga for the Claimant.
P Mujeku for the judgment creditor.

DEME J: On 20 November 2025, I dismissed the Claimant's claim with costs. I also ordered that the Claimant must bear, to the extent applicable, storage costs for the attached goods. I will now proceed to supply the reasons therefor.

On 4 December 2024, the Judgment Creditor obtained a judgment against VPEK Plastics (Pvt) Ltd, Francis Muchuweni, Honest Dzvene, Rangarirai Dadirai and Chenjerai Mutombeni (hereinafter called "the Judgment Debtors") in case number HCHC762/24. The Judgment Creditor instructed the Applicant to attach the property of the Judgment Debtors. The Applicant proceeded to attach the property on 28 July 2025.

The Claimant laid claim to the attached property. It was the testimony of the Claimant that all the attached property belongs to itself. The Claimant further alleged that it concluded an agreement of sale with the 1st Judgment Debtor in respect of all the attached property. The Claimant additionally claimed that it supplied raw materials to the 1st Judgment Debtor in 2022 at the value of around US$107 000 in exchange of the attached property.

The Claimant affirmed that it concluded a lease agreement with Shumba Properties. It further averred that the attached property was delivered at its workplace on 3 May 2024. The Claimant

also claimed that the 1st Judgment Debtor operates at 114 Lyton Road, Workington, and Harare and not at the address of attachment being number 3 Melbourne Road, Southerton, and Harare.

The matter was opposed by the Judgment Creditor. According to the Judgment Creditor, the 1st Judgment Debtor moved out of the address being 114 Lyton Road, Workington, and Harare. It is the Judgment Creditor's case that the 1st Judgment Debtor moved to number 3 Melbourne Road, Southerton, and Harare which is the address of attachment. The Judgment Creditor further alleged that the Claimant and the 1st Judgment Debtor have a business relationship. On this basis, the Judgment Creditor concluded that collusion cannot be ruled out under such circumstances.

It was further averred that the agreement of sale does not explain the assets allegedly purchased. The Judgment Creditor further maintained that there is no proof that the raw materials were delivered at the 1st Judgment Debtor's address. According to the Judgment Creditor, the raw materials allegedly delivered are not described with sufficient particularity. Only codes are used to describe such materials delivered, according to the Judgment Creditor.

The Judgment Creditor asserted that the Claimant failed to prove the existence of the alleged lease as there is no proof for the payment of rentals. It was further alleged that the stools and the table which were attached are not part of the claimed goods.

On 28 October 2025, Mr. Mapanga motivated a fresh point *in limine* which was not part of the pleadings before the court. Mr. Mapanga argued that the Judgment Creditor did not file a resolution authorizing the deponent to the Judgment Creditor's opposing affidavit. Counsel for the Judgment Creditor requested for more time to research on the fresh point *in limine*. I granted the request.

The Judgment Creditor filed supplementary affidavit where it attached the resolution authorizing the deponent to its opposing affidavit. She subsequently prayed for leave that the supplementary affidavit be admitted as part of the record. I granted leave to file supplementary affidavit. It was argued by Mr. Mapanga that the resolution attached to the supplementary affidavit refers to the main case where the deponent was authorized to sue the 1st Judgment Debtor. According to Mr. Mapanga, such a resolution is misplaced. He further argued that the resolution ought to have referred to the present matter. On this basis, Mr. Mapanga argued that the resolution is invalid.

It is apparent that the deponent who is authorized to represent a juristic person in a particular case can represent the same juristic person in a related matter. Reference is made to the case of *Valentine and Anor v Blooming Investments (Private) Limited and Ors*[1], where the Supreme Court held that:

> "(28) The need for any person representing a company to have the company's authority to do so was dealt with by this Court in *Madzivire & Ors* v *Zvarivadza & Ors* 2006 (1) ZLR 514 (S) where it was held that a company, being a separate legal *persona* from its directors, cannot be represented in a legal suit by a person who has not been authorised to do so. At p 516 B-E CHEDA JA, delivering the judgment of the court said:
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> > "It is clear from the above that a company, being a separate legal *persona* from its directors, cannot be represented in a legal suit by a person who has not been authorised to do so. This is a well-established legal principle, which the courts cannot ignore. It does not depend on the pleadings by either party."
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> (29) In the case of *Cuthbert Elkana Dube* v *Premier Service Medical Aid and Another* SC 73/19, at para. 38 of the cyclostyled judgment it was held that:
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> > "The above remarks are clear and unequivocal. A person who represents a legal entity, when challenged, must show that he is duly authorized to represent the entity. His mere claim that by virtue of the position he holds in such an entity he is duly authorized to represent the entity is not sufficient. He must produce a resolution of the board of that entity which confirms that the board is indeed aware of the proceedings and that it has given such a person the authority to act in the stead of the entity. I stress that the need to produce such authority is only necessary in those cases where the authority of the deponent is put in issue. This represents the current status of the law in this country."
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> (30) Therefore, a company resolution is required for two reasons, first, to prove that the entity is aware of the legal proceedings and has authorised them and, secondly, that the person representing it has been clothed with the requisite authority to represent it in the proceedings.
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> (31) In *casu,* the resolution presented on behalf of the first respondent satisfied both requirements of a valid resolution. The resolution in question proves that the first respondent was aware of the legal proceedings and it authorized Tapiwa Gurupira to represent it. It is also common cause that the first appellant and Tapiwa Gurupira have been involved in various litigation relating to these mining claims and he has always represented the first respondent. I see no basis why his authority to represent the first respondent can be validly challenged at this stage. The fact that the resolution has a date after the litigation had been instituted is an obvious error. It was filed on 6 April 2022 together with the respondent's founding affidavit and other pleadings proving that it was generated before the pleadings were filed. It is illogical to argue that it was made thereafter when it is clear that it was in existence when the respondents' pleadings were filed on 6 April 2022.

(32) Mr *Hashiti* for the first respondent correctly submitted that the ownership by the first respondent of the mining claims in issue, had been subject to litigation between the same parties and the court found that Tapiwa Gurupira was the owner of 100 per cent shares of the first respondent. He contended that Tapiwa Gurupira's authority to represent the first respondent was further established by an extant order of the court *a quo* in HC 119/18. The court *a quo* cannot therefore be faulted for holding that Tapiwa Gurupira had the requisite authority to represent the first respondent. There

[1] SC42/23.

was a valid resolution authorising him to do so coupled with extant court orders wherein it was clear that he represented the first respondent and was its approved credited agent."

The relevant contents of the disputed Judgment Creditor's resolution are as follows:

> "The bank granted credit facility to Vpek Plastics Zimbabwe (Private) Limited (client) amounting to US$180,000.00 and the client defaulted on repayment as per the terms and conditions.
> Management intends to institute legal proceedings against the client in order to recover the outstanding loan and accrued interest amount.
> The board is required, by law, to issue specific resolutions each time the bank intends to institute or defend legal proceedings.
> NOW THEREFORE THE BANK RESOLVED THAT:
> 1. The management be and is hereby authorized to institute legal proceedings against Vpek Plastics Zimbabwe (Private) Limited.
> 2. That Shingai Shora ID number 63-1207818D47, in his capacity as Head of Credit be and is hereby authorized to represent the Bank in the matter of First Capital Bank Limited vs Vpek Plastics Zimbabwe (Private) Limited.
> 3. That Shingai Shora be and is hereby authorized to file any documentation and to do any such necessary action to defend the interests of First Capital Bank Limited as and when required to give effect to this resolution."

The Judgment Creditor successfully obtained judgment against the 1st Judgment Debtor which is contemplated in the resolution. After obtaining the judgment, the Judgment Creditor sought to enforce the judgment through attachment of the 1st Judgment Debtor's assets. On this basis, the main matter and this matter are related.

Mr. Mapanga did not dispute that this matter is related to the main matter. For this reason, I dismissed the point in *limine* raised by the Claimant.

On the merits, the sole issue that arises for determination is whether the Claimant has, on a balance of probabilities, managed to prove ownership of the goods claimed.

The position of our law is that the Claimant in interpleader proceedings must, on a balance of probabilities, prove ownership of the goods claimed, failing which the claim must be dismissed. The Supreme Court in *Welli-Well (Pvt) Ltd v Imbayago and Another*[2] remarked as follows*:*

> "It is settled that a party claiming ownership of a property placed under judicial attachment in interpleader proceedings must produce clear and satisfactory evidence to prove such ownership. Such a party bears the onus to prove ownership on a balance of probabilities."

The starting point is that the Claimant is claiming to have been in possession of the machinery at the time of attachment. What is apparent is that the Claimant failed to attach evidence for the existence of the lease agreement. The Claimant attached, to its opposing

[2] SC 8/21

affidavit, the lease. It was challenged to prove the existence of the lease by the Judgment Creditor through tendering proof of payment of rentals. The Claimant ignored this and proceeded to argue that it operated at the disputed address. The Claimant's failure to seek leave to file additional evidence in this connection can only lead to one conclusion that the Claimant was misrepresenting facts.

The Judgment Creditor argued that the 1st Judgment Debtor moved out of Number 114 Lyton Road, Workington, Harare. The Judgment Creditor attached to its opposing affidavit a return of service authored by the Applicant. The Applicant, on the return of service dated 27 January 2025, highlighted that:

> "The 1st respondent moved out of the named address for execution as advised by Mr. Mutukwa at the address at 1309."

This return of service was not disputed by the Claimant. In light of this, I am forced to conclude that the Claimant is not a person which can be trusted. According to the Claimant, the 1st Judgment Debtor operated, at the material time, at Number 114 Lyton Road, Workington, Harare. The Applicant attached the property on 28 July 2025. A person who harbours the habit of lying, can have the rest of the evidence disregarded if it is proved that such a person has been dishonest on one aspect. Reference is made to the case of *Leader Tread Zimbabwe (Pvt) Ltd v Smith*[3] where the court held that:

> "The defendant deliberately lied and changed his story. It is trite that if a litigant gives false evidence, his story will be discarded and the same adverse inferences may be drawn as if he had not given evidence at all – see *Tumahole Bereng* v *R* [1949] AC 253 and *South African Law of Evidence* by L H Hoffmann and D T Zeffertt (3 ed) at page 472. If a litigant lies about a particular incident, the court may infer that there is something about it which he wishes to hide. *In casu*, I am satisfied that he deliberately lied to mislead the court on the nature of the agreement with plaintiff to escape liability. If the defendant sourced the foreign currency the "illegal route" he deliberately deceived the plaintiff in this regard. In my view, the defendant lied on the question of Mr Kershaw because the defence of agency cannot be sustained. He is lying to try and escape an obligation under the contract."

On this basis, the Claimant cannot claim that it was operating at the address of attachment where it failed to prove the existence of the lease agreement. In my view, the 1st Judgment Debtor operated at this address at the material time. On this basis, the 1st Judgment Debtor must

[3] HB131/03.

be presumed to be the owner of the goods attached. Reference is made to the case of *Zandberg v van Zyl*[4], where the court held that:

> "… possession of a movable raises a presumption of ownership …."

The case of *Zandberg v Van Zyl* was quoted with approval in the case of *Muzanenhamo v Fishtown Investments (Pvt) Ltd and Ors*[5]. On this basis, I made a finding that the claim is unmerited.

The claimant, despite being challenged to produce a description of the raw materials with sufficient particularity, failed to tender such proof. The raw materials were described using unknown codes. Mr. Mapanga failed to describe with exactitude the raw materials allegedly delivered to the 1st Judgment Debtor in exchange for the goods attached. Some documents were attached to the Claimant's opposing affidavit from pages 41-48, where the Claimant sought to prove the goods delivered. It was the Claimant's averment that such delivered goods were exchanged for the goods attached. Thus, the improperly described goods constitute a critical component of the barter trade between the Claimant and the 1st Judgment Debtor. In the absence of sufficient particularity of the raw materials supposedly delivered, the alleged agreement of sale in the form of barter trade becomes a hollow affirmation. On this additional basis, I found no merit in the claim.

The judgment Creditor further alleged that the Claimant tendered evidence that some orders for the goods were made verbally, which is not common. Reference was made to page 43. It is apparent that the document on page 43 suggests that the 1st Judgment Debtor made the order for the delivery of goods verbally. This, in my view, can only be construed as a misrepresentation of the highest order. Assuming that this is correct, this can only indicate that the Claimant and the 1st Judgment Debtor are close associates, which can give rise to a greater possibility of collusion. On this reasoning, I found that the claim was a pure abuse of the court process.

Ms *Mujeku* referred the court to the purported agreement of sale on page 39, paragraph 3. According to Ms *Mujeku*, paragraph 3 refers to a takeover agreement that must create a possibility of collusion. Paragraph 3 of the agreement of sale provides that:

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[4] 1910 AD 258 at 272
[5] SC8/17.

> "The two parties further agree that until such a time that communication of takeover of Vpek Plastics customers by Rawplast Investments, supply of product will be under Vpek Plastics (Pvt) Ltd."

Such a close relationship is clear proof that the Claimant and the 1st Judgment Debtor are colluding against the Judgment Creditor to frustrate the execution. For this reason, the court established that the claim ought to be dismissed with costs.

Consequently, I was motivated by the aforesaid reasons to dismiss the claim with costs. The claim was purely unmerited. The Claimant failed to address many issues raised by the Judgment Creditor. Such failure to address the grey areas forced me to draw an adverse inference against the Claimant.

DEME J. ……

Dube Banda Nzarayapenga & *Partners*, Applicant's Legal Practitioners.
Mapfidza & *Rutsito,* Claimant's Legal Practitioners.
Scanlen & *Holderness,* Judgment Creditor's Legal Practitioners.